

discussions. Thus, there is not a showing of a sufficient and reasonable attempt by both sides to informally resolve that dispute prior to the filing of the motion.

It appears the parties engaged in further meet and confer efforts following the filing of Plaintiffs' motion. Keowen Decl., Ex. B. It further appears Defendant agreed to and has produced unredacted documents. Keowen Decl., ¶ 4(c)(i), Ex. B. Defendants' opposition also states it "proposes to produce records from 2015 to 2022 or 2024 if possible." Opp., 8:2-3. Therefore, additional issues appear to be capable of resolution through further meet and confer efforts based on the arguments in the papers filed.

Accordingly, the hearing on Plaintiffs' motion to compel is continued to Friday, September 18, 2026, at 10:00 a.m., in Department 6. Within seven (7) days of this order, counsel for the parties are ordered to participate in a good faith, meet and confer session with respect to the remaining issues giving rise to the pending motion, and considering the Discovery Act requirements described above when discussing Defendant's further responses. Thereafter, the parties shall file a joint status report, no later than two weeks prior to the scheduled hearing, limited to five (5) pages, apprising the Court of the outcome of the meet and confer efforts and setting forth in succinct fashion each party's position as to what discovery issues, if any, remain outstanding in relation to the pending motions. The report shall also include any request for discovery sanctions by any party. To the extent that any discovery disputes remain, the parties shall file an amended separate statement at least two weeks prior to the continued hearing date.

5. CU0002596 Peter Moran vs. John Doe, et al

Defendant Edelweiss Holdings, LLC dba Crystal Ridge Care Center's demurrer is overruled.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-114.

"If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted." *Milligan v. Golden Gate Bridge Highway & Transportation Dist.* (2004) 120 Cal.App.4th 1, 6.

Analysis

Defendant argues its demurrer should be sustained without leave to amend because Plaintiff's complaint is barred by the statute of limitations pursuant to Code of Civil Procedure section 340.5. The Court disagrees.

“[I]n determining whether the MICRA statute of limitations applies, we look to whether the plaintiff's claim derives from *professional* obligations that are distinct from the duty to exercise ordinary care that is owed to the public generally. Where the plaintiff's claim is premised on the violation of a professional obligation owed in the rendering of a patient's medical care, treatment, or diagnoses, the claim sounds in professional negligence and the MICRA statute of limitations will apply.” (emphasis in original). *Gutierrez v. Tostado* (2025) 18 Cal.5th 222, 238. “Where, in contrast, the alleged negligence does not implicate a specific professional obligation along the foregoing lines and violates only the duty of ordinary care owed to the general public, the claim does not involve professional negligence and the MICRA statute of limitations is inapplicable.” *Ibid.* In addition:

For MICRA's statute of limitations to apply, it is not enough that there is a temporal connection between the plaintiff's alleged injuries and a health care provider's rendering of professional services. Rather, the alleged injury must be “suffered as a result of negligence in rendering the professional services that hospitals and others provide by virtue of being health care professionals.” That is, the breach of the professional obligation must be the “proximate cause of a personal injury or wrongful death.”

Id. at 241 (citation omitted).

At bar, Plaintiff's complaint alleges “Defendants owned and operated a motor vehicle. The Defendants owed a duty to those around them to safely operate said motor vehicle. The Defendants ... suddenly and negligently operated the vehicle by braking abruptly while Plaintiff was not securely strapped....” Complaint, COA for General Negligence. Thus, “Plaintiff does not allege that defendants were negligent in performing ‘medical diagnosis or treatment’ of the patient whom they were transporting.” *Gutierrez*, 18 Cal.5th at 239. “As such, plaintiff's claim sounds in general negligence and falls outside of MICRA's scope.” *Id.* at 240.

The one-year statute of limitations contained in Code of Civil Procedure section 340.5 does not apply and the demurrer is overruled.